

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Defendant is sanctioned in the amount of \$460.

Plaintiff to draw and file Order.

**2. 9:00 AM CASE NUMBER: L23-03486
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. STEPHANIE JIN
*HEARING ON MOTION IN RE: TO ENTER JUDGMENT PURSUANT TO STIPULATION
FILED BY: JPMORGAN CHASE BANK, N.A.
*TENTATIVE RULING:***

Background

Plaintiff has filed, on November 6, 2025, a Motion to Enter Judgment pursuant to a Stipulation under Section 664.6 of the Code of Civil Procedure.

The Stipulation was attached to the Motion, and was also independently filed on November 6, 2025. It was executed by both parties on November 6, 2024.

Analysis

Plaintiff filed a proof of service for the service of the Motion, however, service was effected by mail on an attorney, the Kazerouni Law Group, with a mailing address in Las Vegas, Nevada.

This court has taken judicial notice of the file in this matter, and notices that there is no record of any

attorney ever representing the Defendant.

Defendant signed the Stipulation alone, without representation, and there have been no Substitutions of Attorney on her behalf filed in this case.

No documents have ever been submitted on behalf of the Defendant suggesting that she has representation.

Thus, this court does not find that Defendant was properly notified of this hearing.

Disposition

Motion is continued for 30-60 days for Plaintiff to properly serve Defendant. Plaintiff to provide notice to Defendant of next hearing date.

Plaintiff to file Order.

3. 9:00 AM CASE NUMBER: L24-04232

CASE NAME: CITIBANK N.A. VS. GINO MAYNETTO

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: CITIBANK N.A.

TENTATIVE RULING:

Background

Plaintiff filed, on January 7, 2026, a Motion to Vacate Dismissal and Enter Judgment, under Section 664.6 of the Code of Civil Procedure. The Motion is scheduled for hearing on January 27, 2026.

Notice of the Motion was served on Defendant, via mail service, on January 7, 2026.

The Motion is unopposed.

Analysis

Section 1005 of the Code of Civil Procedure requires notice for a motion hearing of at least 16 court days. January 7, 2026, doesn't pass muster at 13 court days.

Disposition

This Motion will be continued 30-60 days to give Defendant the opportunity to respond.

Plaintiff to file Order and to provide notice of next hearing.

4. 9:00 AM CASE NUMBER: L24-08569

CASE NAME: WELLS FARGO BANK, N.A. VS. ANA GUANZON